

Circular Memo.No.609/Spl.B/99-8, Genl.Admn. (Spl.B) Dept., dt.19.06.2002: Reasons for not sanctioning prosecution to be recorded and communicated.

Subject Heading : Sanction of prosecution - to issue within 45 days

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- Ref :
1. G.O.Ms.No.421, G.A.(SC.D) Dept., dt.03.08.1993.
 2. U.O.Note No.450/SC.D/87-1, G.A.(SC.D) Dept., dt.20.07.1987.
 3. U.O.Note No.2752/SC.E/95-1, G.A.(SC.E) Dept., dt. 16.09.1995.
 4. From the Central Vigilance Commission, Govt. of India, New Delhi, Circular No.8(1)(h)/98(3), dt.27.11.1998.
 5. From the Central Vigilance Commission, Govt. of India, New Delhi, Circular No.98/DSP/11, dt.03.03.1999.

As per the scheme of the A.P.Vigilance Commission, the ACB will forward final reports in all cases investigated by the Bureau in which it considers that a prosecution should be launched, to the Department / Government Undertaking / Government Company and such other institutions through the Vigilance Commission with a copy to the General Administration (SC) Department for any comments within 21 days from the date of receipt of the report by such agency / disciplinary authority, which the latter may wish to forward its comments on the reports to the Commission. The Commission after examining the report and the comments if any, received from the concerned disciplinary authority will advise the concerned agency / disciplinary authority with a copy to the General Administration (SC) Department whether or not prosecution should be sanctioned. Orders thereafter will be issued by the concerned Administrative Department in the Government in cases of Gazetted and Non-Gazetted Officers and Government Undertakings / Government Company and such other institution as the case may be. In all such cases final orders issued on the advise of the Vigilance Commission shall invariably be furnished to the Commission. As per the instructions issued in the U.O. Note second cited as further clarified in the U.O.Note third cited, the sanction of prosecution should be accorded within a period of 45 days from the date of receipt of the advice of the Vigilance Commissioner.

2. The Central Vigilance Commission, New Delhi in their Circulars fourth and fifth cited have issued instructions among others as under:
3. If at the end of the time limit, no decision had been given by the competent authorities, then the CVC will take an adverse view and deem it as a case of misconduct on the part of the competent authority.
4. The reasons for not granting sanction for prosecution should also be recorded by the competent authorities in the form of a speaking order, while communicating the same to the CBI.

5. After careful consideration of the above instructions issued by the Central Vigilance Commission, the Government hereby direct that in all cases requiring sanction of prosecution should be done within the time limit of 45 days as prescribed in the U.O. Note third cited from the date of receipt of the advice from the Vigilance Commission. In cases where the competent authorities propose to deviate from the advice of the Vigilance Commission they should record reasons for not granting sanction of prosecution in the form of a speaking order, while communicating the same to the Director General, Anti-Corruption Bureau, A.P., Hyderabad and to the Andhra Pradesh Vigilance Commission with a copy to General Administration (SC) Department. In case of such a refusal to sanction prosecution is contrary to the advice of the A.P. Vigilance Commissioner, the procedure prescribed in Business Rule 32(1)(x) should be scrupulously followed.

6. All Departments of Secretariat are, therefore, requested to follow the above instructions scrupulously. They are also requested to communicate the above instructions to all subordinate offices and institutions under their administrative control, duly marking a copy of such instructions to General Administration (Spl.B) Department.